

I. Request

The Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPd) to issue an opinion on the draft Decree-Law aimed at regulating marine scientific research activities conducted by non-national entities in the national maritime space, establishing the authorization procedures for these activities and the obligations and rights of the respective entities, and creating mechanisms that promote the participation of researchers and entities from the national scientific system in research activities.

1. The CNPD issues an opinion within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of no. 1 of article 57, paragraph b) of no. 3 of article 58, and no. 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, no. 2 of article 4, and paragraph a) of no. 1 of article 6, all of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. Analysis

2. The draft Decree-Law aims to realize the rights conferred by the United Nations Convention on the Law of the Sea (UNCLOS), approved by Resolution of the Assembly of the Republic no. 60-B/97, of October 14, to States and international organizations regarding marine scientific research, to foster international cooperation, establishing simplified and dematerialized procedures and rules that make the relationship with the Portuguese State transparent, with the objective of creating a favorable environment for international cooperation, with benefits for the national scientific system.

3. The draft decree-law is applicable, according to article 2, no. 3, to non-national entities, that is: foreign States, international organizations, and other non-national entities regardless of their nature.

4. Article 4 of the Draft provides that it is the responsibility of the Directorate-General for Foreign Policy (DGPE), within the scope of its political-diplomatic coordination and inter-ministerial coordination in monitoring and addressing international issues, to receive requests for authorization of marine scientific research activities, requests related to the respective authorization, issue the respective decisions, and establish communications with the applicants (no. 2), and it is the responsibility of the Portuguese Institute of the Sea and the Atmosphere (IPMA) to direct the authorization procedure and related procedures.

5. Article 5, which regulates the "Processing of procedures," provides that the submission of authorization requests and related requests shall be made through diplomatic channels (no. 1). However, no. 2 establishes that: "Without prejudice to the provisions of the previous number, the procedures provided for in this decree-law are processed through the Electronic Sea Counter (BMar), as provided in Decree-Law no. 43/2018, of June 18," which is accessible through the single service portal, under the terms of Resolution of the Council of Ministers no. 46/2019, of February 22, and must provide all information about the procedure and the necessary documentation (nos. 3 and 4).

6. The authorization request is instructed, among other practical and scientific elements and documents, with the information of the "Identification of the applicant and the entity they represent, as well as the identification of the persons and entities that make up the project;" – paragraph a) of no. 2 of article 8 – whereby applicants are exempt from presenting documents in the possession of any public administration service and body when they give their consent for their acquisition using the Public Administration Interoperability Platform or resort to the mechanism provided in no. 2 of article 4 of Law no. 37/2014, of June 26, which regulates the authentication of citizens on Public Administration Portals.

7. It is important to note that the diploma is silent on the personal data to be collected for automated processing, as referred to in article 8, no. 2, paragraph a).

8. No. 5 of article 5 specifies that access to all information contained in BMar is granted to IPMA, DGPE, and the ten entities identified in article 9, no. 2, as well as the supervisory entities – Navy, National Maritime Authority, National Aeronautical Authority, Institute for Nature Conservation and Forests, IP (ICNF), IPMA, IP, Directorate-General for Natural Resources, Safety and Maritime Services (DGRM), and police authorities.

9. Article 15, titled "Access and disclosure of information," provides in its nos. 1 and 2 that DGPM, through BMar, has access to all information related to requests and issued authorizations, as well as to procedures and documents, and ensures public access to information that includes the identity and nationality of the holder of the granted authorizations, among others.

10. Analyzing the draft Decree-Law from the perspective of its compliance with the legal regime for the protection of personal data, it is noted that a responsible entity for the processing of the collected data is not expressly provided for, in accordance with the terms and for the purposes established in the current legislation on data protection.

11. As mentioned, the procedures provided for in this diploma are processed through the electronic counter BMar, which is, according to article 4 of Decree-Law no. 43/2018, of June 18, the dematerialized support for acts carried out in the context of the National System of Vessels and Mariners (SNEM), constituted by a

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unique national database in which information related to ships, vessels, and seafarers is collected in order to provide greater clarity and ease of access to services in the maritime area.

12. In the absence of an autonomous provision regarding data processing and the entity responsible for it within the scope of this diploma, we question whether it is intended for this matter to be regulated by Article 6 of Decree-Law No. 43/18, of June 18, which states: "The Directorate-General for Marine Resources (DGRM) is responsible for the processing of data entered in the SNEM (National System of Vessels and Seafarers), (...) 'in accordance with and for the purposes provided for in the legislation in force regarding data protection, being responsible for ensuring the right to information and access to data by the respective holders, the correction of inaccuracies and omissions, and the suppression of improperly registered data.'"

13. If this is the intention of the legislator, it should be expressly mentioned and referred to, for greater clarity and transparency.

14. It is also worth noting that, from the definition of who is responsible for processing, the obligations regarding transparency arise, as provided in Articles 13 and 14 of the GDPR, and regarding the guarantee of the rights of data subjects – which is currently omitted in the diploma.

15. The diploma under analysis does not specify which personal data is collected and subject to processing (cf. Point 6), limiting itself to stating that it relates to the identity and nationality of the applicant for authorization, as well as of the individuals involved in the project. Given the scope of the diploma and the need to assess scientific research projects, it is assumed that a lot of information of a curricular nature will be processed, so the decree-law should expressly provide for the categories of personal data subject to processing.

16. Furthermore, considering that paragraph 2 of Article 8 of the draft decree-law provides that all information and documentation to be submitted together with the authorization request will be defined by order of the members of the Government responsible for the areas of foreign affairs and the sea, it is emphasized that matters of data protection, being related to a fundamental right, should be regulated by law and not determined by ministerial order.

17. In the absence of specification of the personal data to be processed, the CNPD cannot issue a judgment regarding its compliance with the principles of purpose and minimization enshrined in subparagraphs b) and c) of paragraph 1 of Article 5 of the GDPR.

18. It is also necessary to establish the retention period for personal data for this processing, without prejudice to the maintenance of the remaining information for an indefinite period, which has also not been done.

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19. Finally, it is important to establish in this diploma which personal data may be made public and how they may be made public (e.g., upon request for consultation or made available on the Internet), taking into account criteria of adequacy, necessity, and proportionality.

III. Conclusion

20. In accordance with the terms and grounds mentioned above, the CNPD recommends:

- a) Specify which personal data is collected, respecting the principles of purpose and minimization, as provided in subparagraphs b) and c) of paragraph 1 of Article 5 of the GDPR;
- b) Identify the entity responsible for processing the collected data, making, if necessary, the reference to Decree-Law No. 43/2018, of June 18;
- c) Specify the retention period for personal data and the extent and manner in which personal data may be made public.

Approved at the meeting of July 4, 2023

Paula Meira Lourenço (President)